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TCYSA Board votes to expel CBSC from youth soccer association.

The Thurston County Soccer Association (TCYSA) Board made a difficult decision at the Board meeting on February 12, 2017 to expel the Chinqually Booters Soccer Club (CBSC) from the Association. There were many steps that led to this final decision.

In September 2016 a concern surfaced about insurance coverage for the TCYSA Board members regarding children playing soccer in US Club teams. TCYSA is a Washington Youth Soccer (WYS) Association and as such its members, including players, coaches and Board members, are covered under WYS insurance. CBSC operates a program that does not participate in WYS activities but participates solely in US Club activities. TCYSA was informed that the insurance that US Club offers does not cover directors and officers, therefore, the TCYSA volunteer Board members were not covered by any insurance for incidents potentially involving players, coaches, or volunteers in US Club activities.

At the November meeting several motions were passed including 1) a requirement that CBSC would fully defend and indemnify TCYSA for any non WYS activities and 2) CBSC would provide insurance coverage for TCYSA directors and officers equal to the coverage provided by WYS and 3) Chinqually was placed on probation with the TCYSA pending resolution of the issue.

The TCYSA Board met again January 8, 2017. At the January meeting the insurance option provided by CBSC was not deemed to meet the standards of the motion from November. The proposed insurance option failed to provide coverage equal to that of WYS as it did not cover youth sports activities among other deficiencies. However, as a result of the ongoing discussion and questions about the insurance coverage issues, the TCYSA Board approved a 30 day extension of the probationary period to allow CBSC an opportunity to offer an independent legal opinion regarding the liabilities, if any, and potential solutions to the insurance question. The CBSC Board requested that TCYSA review and approve CBSC's selection of independent counsel before they incurred expenses. TCYSA formed a committee to review the independent counsel options and were informed by the CBSC president that they would be given candidate(s) to consider by January 20, 2017. No candidate(s) was (were) forwarded to the committee or the TCYSA Board by January 20 or before the probation expiration date.

CBSC did send several communications to TCYSA during the probation period. These included letters from the vice president of US Club Soccer and a private lawyer that CBSC had retained demanding that TCYSA lift the probation and not proceed towards expulsion. The letters were deemed inadequate in addressing CBSC's commitment to resolve the potential liability and insurance issues in part because the letters erroneously claimed that TCYSA was attempting to force CBSC to register participants in WYS.

All member Clubs of TCYSA have agreed to and are bound to follow the bylaws, rules, policies and directives of TCYSA. In fact, most recently in August 2016 CBSC reconfirmed its commitment to this agreement as a condition of ongoing membership in the Association.

TCYSA held a special meeting on February 12, 2017, to discuss the probation requirements that were placed on CBSC. Many people attended the meeting and asked questions about the process. The Board had discussions both in open and executive session and ultimately voted to expel Chinqually for failure to comply with the terms of probation effective March 15, 2017. The vote was 14 for, 1 abstention, 3 against. This decision was very emotional and was taken with deep regret for the potential impact that

it will have on soccer families in our community. To clarify, TCYSA voted to expel Chinqually and not to disband Chinqually. TCYSA has no authority to disband any member Club only to require that they follow the TCYSA bylaws, rules and policies, including those of our governing bodies. CBSC has the right to appeal this decision with Washington Youth Soccer.

TCYSA Board members and its member clubs are committed to serving our soccer community by providing the best and safest environment for our players, coaches and volunteers. We are committed to working together to improve the soccer playing opportunities for our community. We regret that CBSC did not fulfill the requirements of their probation and allow us to work cooperatively through the insurance issues with which the Board has been dealing.